

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Jean Paul Lozada	Team: Squad #02	CCRB Case #: 201506397	☒ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Saturday, 08/01/2015 9:50 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 2/1/2017	Precinct: 28
Date/Time CV Reported Mon, 08/03/2015 1:20 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 08/03/2015 1:20 PM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. DTS Jesus Capo	01906	926640	028 PCT
2. POM Johnpaul Pennacchia	09573	948115	028 PCT

Officer(s)	Allegation	Investigator Recommendation
A . DTS Jesus Capo	Abuse: Det. Jesus Capo questioned § 87(2)(b)	A . Exonerated
B . DTS Jesus Capo	Abuse: Det. Jesus Capo stopped § 87(2)(b)	B . Substantiated
C . DTS Jesus Capo	Abuse: Det. Jesus Capo frisked § 87(2)(b)	C . Substantiated
D . POM Johnpaul Pennacchia	Force: PO John Paul Pennacchia used physical force against § 87(2)(b)	D . Exonerated
E . DTS Jesus Capo	Abuse: Det. Jesus Capo refused to provide his name to § 87(2)(b)	E . Unsubstantiated
§ 87(4-b) § 87(2)(g)		

Case Summary

On August 3, 2015, § 87(2)(b) filed this complaint on behalf of herself and her son, § 87(2)(b) with the CCRB via telephone.

On August 1, 2015, at approximately 9:50 p.m., § 87(2)(b) was sitting on a stoop in front of § 87(2)(b) in Manhattan with his cousins, § 87(2)(b) and § 87(2)(b) and their two friends, § 87(2)(b) and an individual known only as § 87(2)(b). Det. Jesus Capo and PO John Paul Pennacchia received a radio run for a group of individuals selling drugs and smoking marijuana at this location. When they arrived, everyone except for § 87(2)(b) left the stoop and walked across § 87(2)(b). Det. Capo allegedly told § 87(2)(b) to remain seated on the stoop and asked him if he lived in the building and if he had any weapons on him (**Allegation A**) and § 87(2)(b) offered no verbal response and leaned forward. Det. Capo then frisked § 87(2)(b) (**Allegations B and C**) with negative results. § 87(2)(b) walked back across § 87(2)(b) and approached PO Pennacchia, who pushed him back twice (**Allegation D**). § 87(2)(b) arrived at the scene and asked Det. Capo for his name and Det. Capo allegedly said “It’s right here,” and did not verbally provide his name to § 87(2)(b) (**Allegation E**). No one present at the scene was summonsed or arrested.

Mediation, Civil and Criminal Histories

- Mediation was offered to § 87(2)(b) and § 87(2)(b) during their CCRB interviews on August 5, 2015. § 87(2)(b) rejected mediation § 87(2)(b). Capo, § 87(2)(b) rejected mediation § 87(2)(b).
- On October 21, 2015, an online Freedom of Information Law request was made for any notice of claim filed in respect of this incident (Board Review 02). Any responsive notice of claim will be added to the case file upon receipt.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[redacted]
[redacted]
[redacted]
[redacted]
[redacted]

Civilian and Officer CCRB Histories

- This is the first CCRB complaint in which § 87(2)(b) and § 87(2)(b) are named as participants (Board Review 04).
- Det. Jesus Capo has been a member of the NYPD for 15 years and has 22 prior CCRB allegations involving 11 cases with 1 substantiated allegation.
 - In case number 200205326, Det. Capo allegedly stopped and questioned an individual. This allegation was closed as exonerated.
 - In case number 200510189, Det. Capo allegedly refused to provide his name and shield number to an individual. This allegation was closed as substantiated. The Board recommended and the NYPD subsequently imposed a penalty of instructions.
 - In case number 201201776, Det. Capo allegedly refused to provide his name to an individual. This allegation was closed as unsubstantiated.
 - In case number 201507955, Det. Capo allegedly refused to provide his shield number to an individual. This case was closed as complainant unavailable.
- PO John Paul Pennacchia has been a member of the NYPD for 6 years and has 3 prior CCRB allegations involving 2 cases with no substantiated allegations.

- In case number 201411817, PO Pennacchia allegedly used physical force against an individual. This case was closed as complainant uncooperative.

Potential Issues

- The investigator was not able to establish contact with § 87(2)(b) and § 87(2)(b) and no one mentioned PO Pennacchia pushing § 87(2)(b) in any sworn statement. However, PO Pennacchia acknowledged that he may have pushed § 87(2)(b) and can be seen in the surveillance footage from § 87(2)(b) § 87(2)(b) (Board Review 01) pushing § 87(2)(b)



201506397_20151023_1350_DM.mp4



201506397_20151023_1420_DM.mp4

Findings and Recommendations

Allegation A – Abuse of Authority: Det. Jesus Capo questioned § 87(2)(b)

§ 87(2)(b) stated that while he was seated on the stoop, Det. Capo asked him if he had any weapons on him and § 87(2)(b) said no. Det. Capo then allegedly asked § 87(2)(b) if he had anything in the crumpled pizza bag that he was holding. § 87(2)(b) said no and that he just finished eating the pizza that was in the bag.

§ 87(2)(b) could not hear what Det. Capo was saying to § 87(2)(b) while he was seated on the stoop.

A 911 call (Board Review 05) stated that four to five black males were selling crack cocaine, smoking marijuana, drinking alcohol, and trespassing at § 87(2)(b) § 87(2)(b). One male was wearing a red shirt, two were wearing white, one had a Yankee hat, and one was wearing a black shirt. The 911 caller refused to provide his name and callback number.

Det. Capo stated that he received a radio run in regards to the 911 call mentioned above and observed a group of males that matched the description given over the radio run congregating on a stoop in front of § 87(2)(b) § 87(2)(b). Det. Capo stated that while he was still in the RMP, he asked the group of males on the stoop if they resided in the building. All of these males walked away except for § 87(2)(b). Det. Capo, the primary contact officer, exited the RMP and asked § 87(2)(b) for his name, what he was doing, and if he lived in the building and § 87(2)(b) did not answer. Det. Capo asked § 87(2)(b) if he had identification and he shook his head no. Det. Capo later stated that § 87(2)(b) did not indicate to him that he did not have any identification. Det. Capo asked § 87(2)(b) if he had any weapons on him and § 87(2)(b) did not respond. Det. Capo questioned § 87(2)(b) for approximately 15 to 20 seconds.

PO Pennacchia stated that Det. Capo asked the group of males if they lived in the building and everyone but § 87(2)(b) got up and walked away. Det. Capo, the primary contact officer, spoke to § 87(2)(b) and asked him for his name and if he had any identification on him. Det. Capo asked § 87(2)(b) if he had any weapons. § 87(2)(b) did not offer a verbal response to any of these questions.

People v. Moore (6 N.Y.3d 496 – Board Review 07) holds that a detailed anonymous tip authorizes officers to exercise their common-law right of inquiry.

§ 87(2)(g)

It is therefore recommended that **Allegation A** be closed as **exonerated**.

Allegation B – Abuse of Authority: Det. Jesus Capo stopped § 87(2)(b)

Allegation C – Abuse of Authority: Det. Jesus Capo frisked § 87(2)(b)

§ 87(2)(b) stated that as he was seated on the stoop, Det. Capo and PO Pennacchia arrived in an unmarked RMP. As soon as the officers exited the RMP, § 87(2)(b)'s cousins and their friends went across § 87(2)(b). At the time, § 87(2)(b) was wearing blue basketball shorts, a plain white t-shirt, red Jordan 10 sneakers, and a backpack with a plant print containing books and another pair of sneakers. § 87(2)(b) was holding a pizza bag and an iced tea and had his cell phone, an HTC touchscreen phone, in his front left pocket. § 87(2)(b)'s hands were in his lap and were not in his pockets. § 87(2)(b) was about to get up, but Det. Capo allegedly told him to sit down. Det. Capo then allegedly frisked the exterior of § 87(2)(b)'s pockets. Det. Capo allegedly asked § 87(2)(b) for his identification. § 87(2)(b) did not have any identification on his person at the time and did not give him any form of identification.

§ 87(2)(b)'s statement is generally consistent with § 87(2)(b)'s. However, he stated that he could not hear what the officers were saying to § 87(2)(b).

A 911 call (Board Review 05) stated that four to five black males were selling crack cocaine, smoking marijuana, drinking alcohol, and trespassing at § 87(2)(b). One male was wearing a red shirt, two were wearing white, one had a Yankee hat, and one was wearing a black shirt. The 911 caller refused to provide his name and callback number.

The surveillance footage from the building across the street, § 87(2)(b) (Board Review 01), is too blurry to ascertain the point at which Det. Capo frisked § 87(2)(b).

Det. Capo stated that he arrived at the scene less than five minutes after receiving the aforementioned radio run and observed a group of males on the stoop that matched the description given over the radio run. Det. Capo stated that some of these males were consuming alcohol but that § 87(2)(b) was not. Det. Capo did not observe anyone in possession of illegal drugs in plain view and did not recall whether he observed anyone smoking marijuana. While still in the RMP, Det. Capo asked the group of males if they resided in the building. All of the males except for § 87(2)(b) walked away. Upon Det. Capo's approach, § 87(2)(b) "locked up" by tensing his whole body as if he was doing a crunch while seated at the top of the stoop. Det. Capo explained that § 87(2)(b) leaned forward and brought his knees towards his waistband. § 87(2)(b)'s hand also moved to the right. Det. Capo later stated that he did not recall where § 87(2)(b)'s hands were. From Det. Capo's professional training, § 87(2)(b) tensing his body caused Det. Capo to believe that § 87(2)(b) had a weapon in his waistband. Det. Capo walked up the stairs and approached § 87(2)(b). Det. Capo asked § 87(2)(b) if he had any weapons on him (see Allegation B) and § 87(2)(b) did not respond. With the back of his hand, Det. Capo frisked § 87(2)(b) from his left hip to his right hip for his and his partner's safety while § 87(2)(b) was seated on the steps. Det. Capo stated that he did not give any commands to § 87(2)(b) before frisking him. Det. Capo frisked § 87(2)(b) to make sure that he was not holding anything by clenching. Det. Capo did not discover anything from this frisk. When asked if he observed any bulges on § 87(2)(b)'s person, Det. Capo stated that § 87(2)(b) was wearing baggy shorts and a long shirt. Det. Capo's counsel added that § 87(2)(b) leaned forward, rendering Det. Capo unable to observe any bulges. The fact that § 87(2)(b) leaned forward, did not answer his questions during his investigation, and remained on the stoop when the other males got up and walked away

heightened his suspicion that § 87(2)(b) was armed. When asked if § 87(2)(b) caused Det. Capo to fear for his safety, Det. Capo replied that § 87(2)(b) caused him to “question” his safety. When asked to describe § 87(2)(b)’s demeanor, Det. Capo stated that § 87(2)(b) did not move and that his body gestures and actions “weren’t right” and made no sense to him. Det. Capo noted in his memo book (Board Review 06) that he frisked § 87(2)(b) due to the intoxicated group of males attempting to interfere with his investigation.

PO Pennacchia’s statement was generally consistent with Det. Capo’s.

An officer may stop and detain an individual if he or she has reasonable suspicion that the individual has committed, is committing, or is about to commit a crime (People v. DeBour, 40 N.Y.2d 210). DeBour also states that in order to frisk an individual, an officer must have reasonable suspicion to believe that the individual is armed. A detailed anonymous tip does not provide reasonable suspicion to stop and frisk an individual (People v. Moore, 6 N.Y.3d 496). A vague or general description is not sufficient to constitute reasonable suspicion, even when there is some temporal proximity to the offense (People v. Dubinsky, 734 N.Y.S.2d 245). An individual in a high-crime area early in the morning who has a weighted-down bulge in his pocket, changes course after noticing officers, blades his body as officers approach, and attempts to block the officer’s hand from touching the bulge, only provides the officers with founded suspicion and, in totality, does not create reasonable suspicion necessary to stop and frisk the individual (People v. Gerard, 942 N.Y.S.2d 112). See Board Review 07.

§ 87(2)(g)



§ 87(2)(g)



It is therefore recommended that **Allegations B and C** be closed as **substantiated**.

Allegation D – Force: PO John Paul Pennacchia used physical force against § 87(2)(b)
§ 87(2)(b) stated that § 87(2)(b) questioned the officers about why they were searching § 87(2)(b)
§ 87(2)(b) § 87(2)(b) engaged the officers in a “heated” argument and PO Pennacchia pushed

§ 87(2)(g) it is recommended that **Allegation D** be closed as **exonerated**.

Allegation E – Abuse of Authority: Det. Jesus Capo refused to provide his name to § 87(2)(b)

§ 87(2)(b) alleged that she asked Det. Capo for his name and Det. Capo said, “It’s right here.” § 87(2)(b) then read Det. Capo’s name on his shield and recorded it in a note on her cell phone. Det. Capo allegedly did not verbally provide his name to § 87(2)(b) § 87(2)(b) recalled § 87(2)(b) and Det. Capo arguing with each other, but he did not know what they were arguing about. Det. Capo stated that § 87(2)(b) asked for his name and shield number and he verbally recited his name, shield number, and tax number to her. PO Pennacchia did not recall § 87(2)(b) asking for Det. Capo’s name and shield number and did not recall Det. Capo refusing to provide his name and shield number to her. § 87(2)(g)

§ 87(2)(g) It is therefore recommended that **Allegation E** be closed as **unsubstantiated**.

§ 87(4-b), § 87(2)(g)

Squad: 2

Investigator: _____
Signature Print Date

Pod Leader: _____
Title/Signature Print Date

Attorney: _____
Title/Signature Print Date